

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #9	CCRB Case #: 201508728	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 10/04/2015 9:30 PM	Location of Incident: § 87(2)(b)	Precinct: 67	18 Mo. SOL 4/4/2017	EO SOL 4/4/2017	
Date/Time CV Reported Sun, 10/04/2015 11:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/12/2015 5:00 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jessenia Tabb	04026	943317	067 PCT
2. POM Delvis Garcia	11947	945194	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Jessenia Tabb	Abuse: Sgt. Jessenia Tabb entered and searched § 87(2)(b) in Brooklyn.	
B.POM Delvis Garcia	Abuse: PO Delvis Garcia entered and searched § 87(2)(b) in Brooklyn.	
C.SGT Jessenia Tabb	Abuse: Sgt. Jessenia Tabb stopped § 87(2)(b)	
D.SGT Jessenia Tabb	Abuse: Sgt. Jessenia Tabb stopped § 87(2)(b)	
E.POM Delvis Garcia	Abuse: PO Delvis Garcia stopped § 87(2)(b)	
F.POM Delvis Garcia	Abuse: PO Delvis Garcia frisked § 87(2)(b)	
G.POM Delvis Garcia	Discourtesy: PO Delvis Garcia spoke discourteously to § 87(2)(b)	
H.POM Delvis Garcia	Force: PO Delvis Garcia used physical force against § 87(2)(b)	
I.SGT Jessenia Tabb	Abuse: Sgt. Jessenia Tabb did not obtain medical treatment for § 87(2)(b)	
J.POM Delvis Garcia	Abuse: PO Delvis Garcia did not obtain medical treatment for § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

On October 4, 2015, at approximately 9:45 p.m. on the sidewalk in front of § 87(2)(b) in Brooklyn, Sgt. Jessenia Tabb and PO Delvis Garcia, both of the 67th Precinct, allegedly saw a male individual with an open, half-full bottle of beer. They attempted to ask the unidentified male for his identification, but he walked into a garage attached to § 87(2)(b), which is a restaurant: § 87(2)(b). The door of the garage was left ajar. Sgt. Tabb and PO Garcia followed the male into the garage (**Allegation A** and **Allegation B**). Inside of the garage were § 87(2)(b) and § 87(2)(b). Sgt. Tabb stopped § 87(2)(b) and § 87(2)(b) (**Allegation C** and **Allegation D**), and PO Garcia stopped § 87(2)(b) (**Allegation E**). Sgt. Tabb and PO Garcia told § 87(2)(b) and § 87(2)(b) to go outside. PO Garcia then frisked § 87(2)(b) (**Allegation F**). While § 87(2)(b) and § 87(2)(b) were outside, § 87(2)(b) the proprietor of the businesses at § 87(2)(b), approached PO Garcia, asking him what was going on. Also present was § 87(2)(b)'s friend § 87(2)(b). PO Garcia allegedly told § 87(2)(b) "Shut the fuck up," and he extended his arm, allegedly pushing § 87(2)(b) (**Allegation G** and **Allegation H**). § 87(2)(b) fell backwards into a line of potted plants. § 87(2)(b) and § 87(2)(b) then requested medical attention for § 87(2)(b) but PO Garcia and Sgt. Tabb did not provide it for him (**Allegation I** and **Allegation J**). § 87(2)(b) called an ambulance, which took § 87(2)(b) to § 87(2)(b), where he was treated for a sprained ankle (Privileged Documents). PO Garcia issued § 87(2)(b) a summons for § 87(2)(b), and issued a summons for § 87(2)(b) for § 87(2)(b) (B.R.1 and 2). No individual was arrested as a result of this incident.

Video of part of this incident was provided by the complainant, § 87(2)(b). It does not show any allegations that fall under CCRB jurisdiction, however, it shows that § 87(2)(b) was under the influence of alcohol during the incident.



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§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b)'s injury rendered this case unsuitable for mediation.
- On January 11, 2015, a FOIL request for a Notice of Claim for § 87(2)(b) and § 87(2)(b) was returned with negative results (B.R. 3).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)]
- [§ 87(2)(b)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint involving [§ 87(2)(b)] or [§ 87(2)(b)] (B.R. 5).
- Sgt. Tabb has been a member of service for eight years. She has had two prior complaints filed against her, totaling five previous allegations. [§ 87(2)(g)]
- PO Garcia has been a member of service for eight years. This is the first CCRB complaint filed against him (B.R. 7).

Potential Issues

- Statements could not be collected from [§ 87(2)(b)] or [§ 87(2)(b)] because they were both unavailable to the investigation.
- While there was video of [§ 87(2)(b)] lying on the ground after he fell, video of him falling could not be obtained. Additionally, there is no video available of the officers' entry.

Findings and Recommendations

Explanation of Subject Officer Identification

[§ 87(2)(g)] because PO Garcia admitted to stopping, frisking, and issuing a summons to [§ 87(2)(b)] [§ 87(2)(g)] [§ 87(2)(b)] Sgt. Tabb admitted to stopping [§ 87(2)(b)] and [§ 87(2)(b)] [§ 87(2)(b)] [§ 87(2)(g)]

Allegation A –Abuse of Authority: Sgt. Jessenia Tabb entered [§ 87(2)(b)] in Brooklyn.

Allegation B –Abuse of Authority: PO Delvis Garcia entered [§ 87(2)(b)] in Brooklyn.

It is undisputed that PO Garcia and Sgt. Tabb entered the garage of [§ 87(2)(b)] [§ 87(2)(b)] and [§ 87(2)(b)] all alleged that the officers did so (B.R. 8, 9, and 10) and PO Garcia and Sgt. Tabb admitted to going into the garage (B.R. 11 and 12).

The garage in question adjoins a restaurant at [§ 87(2)(b)] called [§ 87(2)(b)] [§ 87(2)(b)] which is also attached to a Laundromat and several residential apartment units. The official designation of the building is mixed commercial and residential (B.R. 8 and 13).

[§ 87(2)(b)] the only victim inside of the garage that the investigation was able to contact, stated that the door to the garage had been opened between six inches and one foot, to let in light from the street (B.R. 10). [§ 87(2)(b)] and [§ 87(2)(b)] were sitting inside and discussing soccer and smoking cigarettes, when he saw Sgt. Tabb and PO Garcia entering the garage.

Both Sgt. Tabb and PO Garcia both testified that they saw [§ 87(2)(b)] drinking from a bottle of beer on the sidewalk (B.R. 11 and 12). They approached him, and requested his identification. In response, he walked into the garage, the doors of which were fully open. PO

Garcia testified that he smelled marijuana before he walked into the garage (B.R. 12), but Sgt. Tabb stated that she only smelled the marijuana once she was inside (B.R. 11).

New York v. Burger, 482 U.S. 691 (1987) established that Fourth Amendment protections against warrantless searches are attenuated for businesses (B.R. 14). Katz v. United States, 389 U.S. 347 (1967) established that the Fourth Amendment does not as comprehensively protect locations where a lesser expectation of privacy exists (B.R. 15).

§ 87(2)(g)

§ 87(2)(g)

Allegation C –Abuse of Authority: Sgt. Jessenia Tabb stopped § 87(2)(b)

Allegation D –Abuse of Authority: Sgt. Jessenia Tabb stopped § 87(2)(b)

Allegation E—Abuse of Authority: PO Delvis Garcia stopped § 87(2)(b)

§ 87(2)(b) the only individual inside of the garage whom the investigation could reach, testified that after PO Garcia and Sgt. Tabb entered the garage, they told him, § 87(2)(b) and § 87(2)(b) to step outside of the garage (B.R. 10). PO Garcia and Sgt. Tabb also asked him, § 87(2)(b) and § 87(2)(b) if they had marijuana or weapons. § 87(2)(b) denied that any individual inside of the garage was smoking marijuana or had any form of contraband (B.R. 10).

Sgt. Tabb and PO Garcia also stated that they stopped § 87(2)(b) and § 87(2)(b) (B.R. 11). Sgt. Tabb testified that she stopped the individuals after smelling marijuana inside of the garage. PO Garcia stated that he stopped the individuals after he smelled marijuana both outside and inside of the garage (B.R. 12). No marijuana was recovered from any individual during this incident.

People v. DeBour, 40 N.Y.2d 201 (1976) allows officers to stop individuals when they have reasonable suspicion that the individuals are engaging in criminality (B.R. 16).

The investigation could not determine by the existing evidence, that is, the officers' and § 87(2)(b)'s testimony, that the scent of marijuana pervaded the garage in any capacity. There is no independent corroboration that the smell of marijuana was or was not present at the time of the incident. Therefore, it is impossible to determine whether the stop was justified.

§ 87(2)(g)

Allegation F –Abuse of Authority: PO Delvis Garcia frisked § 87(2)(b)

It is undisputed that PO Garcia frisked § 87(2)(b) after he stopped him, in front of the garage (B.R. 8-10, 12).

In his CCRB interview, PO Garcia was asked if he had had any reason to believe that any of the males standing in front of the garage were armed. He first responded with “No,” and then immediately followed up with, “I don’t remember.” When specifically asked about the frisk of § 87(2)(b) PO Garcia stated that he “usually” frisks individuals when he sees “a bulge” or “any movements.” When pressed to specify whether either of those factors was present for this frisk, PO Garcia first stated, “If I did frisk him, then yes.” He followed that statement with, “I don’t remember right now,” and “I don’t know right now” (B.R. 12).

People v. DeBour, 40 N.Y.2d 201 (1976) requires officers to have reasonable suspicion that an individual is armed before they frisk the person (B.R. 16).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

Allegation G—Discourtesy: PO Delvis Garcia spoke discourteously to § 87(2)(b)

Allegation H—Force: PO Delvis Garcia used physical force against § 87(2)(b)

All parties present during the incident stated that § 87(2)(b) approached PO Garcia to ask what was going on, and that § 87(2)(b) fell on the ground shortly thereafter. It is not in dispute that PO Garcia told § 87(2)(b) at least once to step back.

§ 87(2)(b) and § 87(2)(b) all testified that PO Garcia then told § 87(2)(b) to “Get the fuck back,” or “Shut the fuck up” (B.R. 8, 9, 10). § 87(2)(b) stated that PO Garcia pushed § 87(2)(b) once with an open palm (B.R. 8). § 87(2)(b) and § 87(2)(b) testified that PO Garcia pushed § 87(2)(b) with two hands (B.R. 11 and 12). § 87(2)(b) stated to the CCRB that he had consumed only a portion of one beer during the evening of the incident, and was not intoxicated (B.R. 9).

PO Garcia stated to the CCRB that he extended his arm once, making physical contact with § 87(2)(b) in an effort to keep him at bay (B.R. 12). He denied, however, that he pushed § 87(2)(b). Sgt. Tabb did not witness whatever occurred that caused § 87(2)(b) to fall (B.R. 11). PO Garcia also denied cursing at § 87(2)(b). Sgt. Tabb did not hear PO Garcia curse at § 87(2)(b).

Video from the incident, taken by an unknown individual and provided by § 87(2)(b) during his CCRB interview, shows § 87(2)(b) on the ground, ostensibly after he has fallen, saying “I am drunk; I am drunk; yes, I was drinking” (Board Review 17). The investigation was not able to locate footage that showed § 87(2)(b) falling.

§ 87(2)(g), § 87(2)(b) and § 87(2)(b) stated that PO Garcia told him to “shut the fuck up,” or “back the fuck up” (B.R. 9 and 10). In his CCRB testimony, § 87(2)(b) did not initially state that PO Garcia cursed at § 87(2)(b) but after viewing the video during the interview, claimed that PO Garcia did curse (B. R. 8). PO Garcia denied cursing, and Sgt. Tabb claimed that she did not hear PO Garcia curse at any civilian. § 87(2)(g)

[REDACTED]
§ 87(2)(g)
[REDACTED]
[REDACTED]
§ 87(2)(g)
[REDACTED]
[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation I –Abuse of Authority: Sgt. Jessenia Tabb did not obtain medical treatment for

§ 87(2)(b)

Allegation J –Abuse of Authority: PO Delvis Garcia did not obtain medical treatment for

§ 87(2)(b)

§ 87(2)(b) stated that both he and § 87(2)(b) requested medical attention for § 87(2)(b) after § 87(2)(b) fell (B.R. 10). § 87(2)(b) and § 87(2)(b) all testified that PO Garcia and Sgt. Tabb tried to help § 87(2)(b) stand up after medical attention was requested in what they believed was an attempt to obviate the need for an ambulance to arrive (B.R. 8-10). A SPRINT from the incident revealed that § 87(2)(b) called the ambulance that ultimately arrived on scene (B.R. 18).

Both Sgt. Tabb and PO Garcia testified that § 87(2)(b) requested medical attention after he fell. They both also stated that PO Garcia attempted to help § 87(2)(b) stand up after he fell. They both stated that an officer on scene called for medical attention, neither officer remembered which officer it was (B. R 11 and 12). Sgt. Tabb stated that she did not obtain medical attention. During his CCRB interview, PO Garcia stated that he did not know if he called an ambulance for § 87(2)(b). PO Garcia did not ride in an ambulance with § 87(2)(b) (B.R. 12). During his CCRB interview, PO Garcia stated that § 87(2)(b) was treated only for alcohol consumption, and did not know that § 87(2)(b) sustained a sprained ankle. PO Garcia went to § 87(2)(b) half an hour after § 87(2)(b) was taken there in order to issue § 87(2)(b) a summons for § 87(2)(b). PO Garcia did not record EMS' arrival in his memo book, and he confirmed that an AIDED report was not prepared in regards to this incident (B.R. 12).

Per Patrol Guide Procedure 210-04, officers must call an ambulance for anyone in police custody who requests one. The officer must also ride with the individual to the hospital (B.R. 19).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Squad #9

Investigator: _____
Signature Print Date

Squad Leader: _____
 Title/Signature Print Date

Attorney: _____
 Title/Signature Print Date